Republic of the Philippines
ENERGY REGULATORY COMMISSION
Pasig City

ENERGY REGULATORY COMMISSION
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RESOLUTION NO. 12, SERIES OF 2022

A RESOLUTION ADOPTING THE SUSPENSION OF THE COLLECTION OF FEED-IN TARIFF ALLOWANCE (FIT-ALL)

WHEREAS, pursuant to the mandate under Republic Act No. 9513 or the Renewable Energy Act of 2008 (RE Law), on 12 July 2010, the ERC promulgated Resolution No. 16, Series of 2010 adopting the Feed-In Tariff Rules (FIT Rules), which was later amended through Resolution No. 15, Series of 2012 on 19 November 2012;

WHEREAS, Section 2.5 of the FIT Rules provides that consumers who are supplied with electricity through the distribution or transmission network shall pay a uniform charge for the power supplied under the FIT program referred to as the Feed-In Tariff Allowance or the FIT-All;

WHEREAS, on 16 December 2013, the ERC promulgated Resolution No. 24, Series of 2013, entitled "A Resolution Adopting the Guidelines on the Collection of the Feed-In Tariff Allowance (FIT-All) and the Disbursement of the FIT-All Fund";

WHEREAS, a Notice of Resolution, dated 30 August 2022, entitled "*In the Matter of the Application for the Approval of the Feed-In Tariff Allowance for the Calendar Year 2022 Pursuant to the Guidelines for Collection of the Feed-In Tariff Allowance and the Disbursement of the Feed-In Tariff Allowance Fund, with Prayer for Provisional Authority*" under ERC Case No. 2021-061RC was issued by the Commission, approving the implementation of the 2022 FIT-All rate of PhP0.0364/kWh effective on the next billing cycle;

WHEREAS, as of 7 November 2022, the FIT-All Fund has a balance of Four billion, two-hundred forty-five million, one hundred thirty-six thousand, one-hundred sixty-one pesos and 75/100 (Php4,245,136,161.75), exclusive of the November 2022 CRR collection;

WHEREAS, the average monthly Cost Recovery Revenue (CRR) collection from January to November 2022 is One billion, seven hundred ninety-five million, three hundred forty-four thousand, three hundred fifty-eight pesos and 7/100 (PhP1,795,344,358.07);

WHEREAS, the monthly average disbursements from the FIT-All Fund for the same period (January to November 2022) is Two billion, forty-one million, nine hundred forty-six thousand, two hundred fifteen pesos and 36/100 (PhP2,041,946,215.36);

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WHEREAS, the FIT-All Fund balance as of 7 November 2022, inclusive of the CRR collections in November 2022, shows a healthy fund balance that can sufficiently cover the FIT-All payment requirements for three (3) months, assuming the same average CRR collection;

WHEREAS, in light of the rising level of inflation and cost of living affecting millions of Filipino households, the Government is introducing remedies to ease inflation pressure on its citizens, including those that address the ability to pay for the rising cost of electricity due to external pressures;

NOW, THEREFORE, the Commission hereby RESOLVES to APPROVE and ADOPT a temporary suspension in the collection of the FIT-All for a period of three (3) months, starting the December 2022 until the February 2023 billing months;

RESOLVED FURTHER, that the Commission, upon receipt of pertinent collection and settlement reports on FIT-All disbursements and collections, shall undertake a review, by January 2023, of the status of the FIT-All Fund to determine the feasibility of extending the period for the suspension of collection of the FIT-All.

This Resolution shall take effect immediately following its publication in a newspaper of general circulation or in the Official Gazette.

Let copies of this Resolution be furnished the University of the Philippines Law Center – Office of the National Administrative Register (UPLC-ONAR), the Department of Energy, and all parties concerned.

Pasig City, 16 November 2022.

ERC
Office of the Chairperson and CEO
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MONALISA C. DIMALANTA
Chairperson and CEO

On Official Leave
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